



POLICE DEPARTMENT

April 26, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Carlos Ruiz
Tax Registry 912062
Transit Bureau District 34
Disciplinary Case No. 84976/09

The above-named member of the Department appeared before me on March 19, 2010, charged with the following:

1. Said Police Officer Carlos Ruiz, while assigned to Transit District #34, on or about July 14, 2008, from approximately 1200 hours until 1600 hours, was wrongfully and without just cause absent from said residence without the permission of said District Surgeon and /or Health Services Division Sick Desk Supervisor.

P.G. 205-01, PAGE 2, PARAGRAPH 4 REPORTING SICK

The Department was represented by Katie O'Connor, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty.

COURTESY • PROFESSIONALISM • RESPECT

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent, a 16-year member of the Department, has been assigned to Transit District 34 since 1998. Prior to that, he was assigned to District 4. District 34 is located in Coney Island and covers the N, D, R, F, and Q trains in south Brooklyn. [REDACTED]

[REDACTED]

On July 14, 2008, the Respondent was out [REDACTED] had been out for the four days prior. The Respondent stated that he had gone to see a doctor from the Medical Division on July 13, 2008, and that on July 14, 2008 he came home to find a note on his door stating that he had to call the sergeant from the Sick Desk. At that time, the normal hours for the Respondent's tour were from 7:05 a.m. until 3:40 p.m.

The Respondent testified that after the doctor finished examining him on July 13, 2008 he asked for a pass for the last four hours of his tour. The Respondent did not inform him what hours his tour covered, and the doctor never asked the Respondent to specify what four hours he was referring to. The doctor handed the Respondent some paperwork but the Respondent did not look at it. Upon leaving the Medical Division, the Respondent went home. The Respondent stated that he was only allowed to leave his house for the four hours specified on the pass, or, after the tour ended.

On July 14, 2008, the Respondent left his residence between the hours of 12:00 p.m. and 4:00 p.m. to go grocery shopping with his wife and kids. When he returned home, he found a note written on a card that was left on his door telling him to call the sergeant at the Sick Desk. The Respondent called the sergeant immediately and was told that he was not supposed to leave his residence and that if he did leave he had to call. The Respondent stated that he told the sergeant that he thought that he had a pass, but the

sergeant informed him that he would have to have a GO-15 (official Department interview).

At 3:40 p.m. on July 14, 2008, the Respondent was considered to be back on full duty. The pass was from 4:00 p.m. to 8:00 p.m. which was after his return to duty. The Respondent stated that he went into work the following day, July 15, 2008.

On cross-examination, the Respondent stated that he called out sick on July 10, 2008, and that on July 13, 2008 he went to see the district surgeon. While visiting the district surgeon, the Respondent asked for a pass to leave his residence while he was on sick report. The Respondent stated that the district surgeon asked him what hours he wanted the pass to be for, and he told him that he wanted it for the last four hours of his tour.

The Respondent stated that he wanted those four hours in case he needed to leave his house to run errands during the time he was on sick report. The pass was issued on July 13, 2008 and the Respondent stated that he never reviewed what was written on it. During his career, the Respondent has reported sick over 40 times. On these prior occasions, he had been to the district surgeon's office and been issued passes. These passes are issued for four-hour periods of time and without a pass an officer cannot leave his home.

The Respondent stated that he understood that he would be restored to duty on July 14, 2008 and that the district surgeon would be alerting his command to this. On that date, the Respondent left his residence to run some errands and did not know where his pass was. He did not look for the pass. The Respondent also stated that he did not request permission from the sick desk or call his command before leaving to run errands.

The note that was left on the Respondent's door was written by Sergeant Roach and the Respondent called her at approximately 6:00 p.m. when he returned home. The Respondent testified that he told Roach that he was not home when she came by because he was out running errands and that he had been issued a pass. The Respondent stated that, "I think I tried to look for it, but I couldn't find it," and that Roach never asked what hours the pass was for.

Upon further questioning by the Court, the Respondent stated that prior to this incident when he was on sick leave he never had anyone from the Health Services Division visit him at home.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined, see Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on February 28, 1994. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has pleaded guilty to the specifications in this case. The sole issue is penalty. The Department has recommended a penalty of 20 days. The Respondent believes a penalty of 5 days is more appropriate.

The facts are uncontested and straightforward. The Respondent, who was on sick leave, visited the Medical Division on July 13, 2008. He was given a pass, officially known as "Permission to leave Residence While on Sick Report" valid from July 13, 2008 through July 14, 2008 between 1600 to 2000 hours (Department's Exhibit 1).

The Respondent left his home on July 14, 2008 at about 1200 hours to run some errands. He was out for about four hours.

The Respondent states that he believed he was given a pass for the last four hours of his regular tour which is what he said he requested of the district surgeon. He points out that at 1540 hours he would have gone off tour and to full-duty and would have been allowed to leave home without the pass. As a result, the pass was of no value. He also acknowledges that he did not actually look at the pass to see what it said and just assumed it covered 1200 hours to 1600 hours.

The Respondent's argument therefore is that his error was technical and minor in nature.

The Department argues that the sick leave policy for uniformed members of the service is very generous, allowing unlimited sick leave. For this reason, the rules governing this unlimited sick leave policy need to be strictly enforced. This Court agrees with the Department's assessment. The question then becomes what is an appropriate penalty under those circumstances.

An examination of recently approved cases is instructive on the level of penalty to be imposed in sick leave abuse cases:

In Disciplinary Case No. 83834/08, signed February 10, 2009, a 16-year member with no prior disciplinary record, having pleaded guilty, forfeits 20 vacation days for going out of state [REDACTED] without permission while on sick leave on four occasions. In addition, on one of those occasions, Respondent returned home one hour and 20 minutes beyond the period allowed by her pass. The Police Commissioner

disapproved a penalty recommended by the Deputy Commissioner of Trials involving the loss of five vacation days.

In Disciplinary Case No. 83716/08, signed January 21, 2010, a nine-year police officer with no prior disciplinary record negotiated a penalty of 20 vacation days for being absent from residence without permission while on sick report and for being outside of New York City or resident counties without permission while on sick report. While out sick, Respondent went on her annual vacation to Puerto Rico.

In Disciplinary Case No. 84665/08, signed January 5, 2010, an eight-year police officer with no prior disciplinary record negotiated a penalty of 25 vacation days for being absent from his residence without permission while on sick report and traveling to New Jersey without obtaining approval from the sick desk supervisor or Chief of Personnel. The Respondent admitted to attending a post-celebration party for Saint Patrick's Day.

[REDACTED]

[REDACTED]

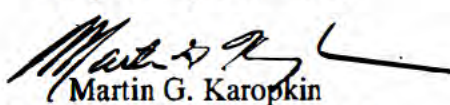
[REDACTED]

[REDACTED]

[REDACTED]

Considering all of these factors an appropriate penalty is the loss of 20 vacation days.

APPROVED
AUG 04 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,

Martin G. Karopkin
Deputy Commissioner - Trials

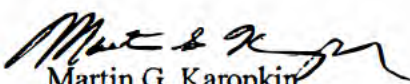
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER CARLOS RUIZ
TAX REGISTRY NO. 912062
DISCIPLINARY CASE NO. 84976/09

The Respondent received an overall rating of 3.0 "Competent" on his annual performance evaluation in 2008 and 2009. In 2007, he received a rating of 3.5 "Highly Competent/Competent." [REDACTED]

[REDACTED]
He has no prior formal disciplinary record.

For your consideration.


Martin G. Karopkin
Deputy Commissioner Trials